

23STCV10408 23STCV10408

County: los-angeles

Division: Civil Law and Motion

Department: 515

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Below are tentative rulings on the motions in limine.

Plaintiff's MIL No. 1 to exclude all defense evidence of efforts to investigate or stop sexual or racial harassment is denied. Defendants stated that they had not yet interviewed anyone or obtained any statement in response to Form Interrogatories 215.1 and 215.2. Defendants also stated investigation and discovery was continuing. Plaintiff provides no evidence that she propounded any supplemental interrogatory and thus the record does not support Plaintiff's contention they were obligated to supplement their response. As for RFP No. 39, while it is true that Defendant agreed to produce responsive documents, Plaintiff has not identified any specific evidence she seeks to exclude based on an argument it was not produced in response to RFP No. 39. Thus, the motion in limine here is not specific enough for the Court to make a meaningful order. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Plaintiff's MIL No. 2 to exclude all defense evidence of efforts to identify or provide reasonable accommodations for Plaintiff's disability is denied. The form interrogatories identified by Plaintiff contain substantive responses from Defendants. Plaintiff has not identified any specific evidence she seeks to exclude based on an argument such evidence was not produced during discovery in these interrogatory responses. Thus, the motion in limine here is not specific enough for the Court to make a meaningful order. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Plaintiff's MIL No. 3 to exclude all defense evidence of efforts to investigate or prevent whistleblower retaliation is denied. Defendants stated that they had not yet interviewed anyone or obtained any statement in response to Form Interrogatories 215.1 and 215.2. Defendants also stated investigation and discovery was continuing. Plaintiff provides no evidence that she propounded any supplemental interrogatory and thus the record does not support Plaintiff's contention they were obligated to supplement their response. As for RFP No. 39, while it is true that Defendant agreed to produce responsive documents, Plaintiff has not identified any specific evidence she seeks to exclude based on an argument it was not produced in response to RFP No. 39. Thus, the motion in limine here is not specific enough for the Court to make a meaningful order. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Plaintiff's MIL No. 4 to exclude all defense evidence of efforts to investigate or prevent retaliation based on Plaintiff's complaints of sexual harassment or requests for reasonable accommodation is denied. Defendants stated that they had not yet interviewed anyone or obtained any statement in response to Form Interrogatories 215.1 and 215.2. Defendants also stated investigation and discovery was continuing. Plaintiff provides no evidence that she propounded any supplemental interrogatory and thus the record does not support Plaintiff's contention they were obligated to supplement their response. Plaintiff has not identified any specific As for RFP No. 39, while it is true that Defendant agreed to produce responsive documents, Plaintiff has not identified any specific evidence she seeks to exclude based on an argument it was not produced in response to RFP No. 39. Thus, the motion in limine here is not specific enough for the Court to make a meaningful order. The moving party may at trial assert an objection to the introduction of specific evidence if and when this issue arises.

Plaintiff's MIL No. 5 to exclude testimony from undisclosed defense witnesses Melissa Arevalo and Jose Gomez is deferred. Plaintiff asserts that these witnesses were not disclosed in discovery responses and Defendants did not identify them in response to a supplemental interrogatory that Plaintiff served in June 2026. But the Court does not have a copy of any such supplemental interrogatory. The Court does not have an opposition from Defendants and so is unsure if these witnesses are still on the witness list. The Court needs to review a copy of the supplemental interrogatory in order to rule on this motion.

Plaintiff's MIL No. 6 to exclude Defendants' expert Jody P.

Evans is denied as moot, because Defendants are not calling Evans as a witness.

Defendant Pepe's Inc.'s MIL No. 1 to preclude Plaintiff from

using the January 20-21, 2026 depositions of Burnett and Maldonado is denied. The record demonstrates that defense counsel received the deposition notices and the zoom links for the depositions. (Lyon Decl., Exs. 1-3.) Their failure to attend the depositions or follow up with counsel about the depositions does not provide a legal or factual basis to exclude the deposition testimony.